

2:00 PM LINE 7

25-CLJ-09900

IVER CAPITAL CORPORATION VS. ALONDRA MORALES

IVER CAPITAL CORPORATION  
ALONDRA MORALES

ALI NABAVI  
PRO PER

---

MOTION OF PLAINTIFF FOR JUDGMENT ON THE PLEADINGS AGAINST DEFENDANT ALONDRA MORALES

**TENTATIVE RULING:**

---

Plaintiff Iver Capital Corporation's unopposed Motion for Judgment on the Pleadings is **GRANTED WITHOUT LEAVE TO AMEND** pursuant to Code of Civil Procedure section 438, subdivision (c)(1)(A).

As a preliminary matter, the Court notes that Department 2 is located in Courtroom K at the Northern Branch, 1050 Mission Road, South San Francisco, California 94080.

A motion for judgment on the pleadings is governed by essentially the same standard as a general demurrer. The Court is confined to the face of the challenged pleadings and matters properly subject to judicial notice and does not consider extrinsic evidence. (*Shea Homes Limited Partnership v. County of Alameda* (2003) 110 Cal.App.4th 1246, 1254; *Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515–516; *Sykora v. State Department of State Hospitals* (2014) 225 Cal.App.4th 1530, 1534.) A plaintiff is entitled to judgment on the pleadings where the complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. (Code Civ. Proc., § 438, subd. (c)(1)(A); *Allstate Insurance Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 330–331.)

Here, Plaintiff's Complaint alleges causes of action for breach of contract and common counts arising from Defendant Alondra Morales's purchase of a 2016 Dodge Challenger under an agreement with Plaintiff's predecessor in interest, Veros Credit LLC f/k/a Veros. Defendant's Answer, filed February 4, 2026, admits all allegations of the Complaint and asserts no matter constituting a defense. Defendant filed no opposition to the present motion, has not requested leave to amend, and has identified no facts suggesting that the deficiency in the Answer could be cured by amendment. Accordingly, the Motion is **GRANTED WITHOUT LEAVE TO AMEND**, and judgment shall be entered forthwith. (Code Civ. Proc., § 438, subd. (h)(3).)

Judgment shall be entered in favor of Plaintiff and against Defendant in the principal amount of **\$5,396.56**, together with prejudgment interest **in the amount established under the applicable contractual or statutory rate**, attorney's fees, if properly recoverable and established, and costs as allowed by law.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

---

2:00 PM LINE 8

26-CIV-06367

DAN STEGINK, ET AL VS. SARAH COFFEY, ET AL

DAN STEGINK  
SARAH COFFEY

JASON A. BEZIS  
MICHELLE MARCHETTA KENYON

---

WRIT OF MANDATE AND PRELIMINARY INJUNCTION MERITS HEARING

**TENTATIVE RULING:**

---

For the reasons stated below, Petitioners Dan Stegink and William Collins’s Verified Petition for Writ of Mandate is **DENIED**.

Petitioners seek an order requiring modification of the ballot question and impartial analysis for City of Pacifica Measure BB. Because the requested relief concerns official election materials, Petitioners must establish not only a statutory violation, but also that issuance of the requested writ will not substantially interfere with the printing or distribution of election materials. (Elec. Code, §§ 9295, 13314.)

The Court finds Petitioners have not met that burden. The declaration of Assistant Chief Elections Officer Jim Irizarry establishes that the County is operating under imminent ballot-production, translation, proofing, programming, and statutory mailing deadlines for the November 3, 2026 election. On this record, Petitioners have not demonstrated that the requested amendments can be implemented at this stage without substantial interference with the election process. The petition is therefore denied on that basis.

In light of the expedited nature of this election matter, the Court also reaches the merits to ensure a complete record for any appellate review. Were relief otherwise available, the Court would find that the phrase “To protect Pacifica’s long-term financial stability” is argumentative and likely to create prejudice in favor of Measure BB, and therefore does not satisfy Elections Code section 13119(c). (*McDonough v. Superior Court* (2012) 204 Cal.App.4th 1169.) The Court otherwise finds that Petitioners have not established a sufficient basis to order the remaining requested changes to the ballot question or to the City Attorney’s impartial analysis.

Accordingly, the Petition for Writ of Mandate is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties’ attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

---